

****November 11, 2021****

****Sanction for Violation of GDPR****

In October 2021, the National Supervisory Authority completed an investigation into the operator VODAFONE Romania S.A. and found violations of the provisions of Article 32 paragraph (1) letter b) and paragraph (4) of the General Data Protection Regulation (GDPR), as well as violations of the provisions of Article 3 paragraph (1) and paragraph (3) letters a) and b) of Law no. 506/2004 regarding the processing of personal data and the protection of privacy in the electronic communications sector.

The operator S.A. was sanctioned administratively as follows:

- a fine of 7,421.25 lei, equivalent to 1,500 EURO, for violating the provisions of Article 32 paragraph (1) letter b) and paragraph (2) of the GDPR;
- a fine of 7,000 lei for violating the provisions of Article 3 paragraph (1) and paragraph (3) letters a) and b) of Law no. 506/2004.

The investigation was initiated following the operator's transmission of several notifications of personal data security breaches under the General Data Protection Regulation or Regulation (EU) no. 611/2013.

Regarding the security breaches notified under the GDPR, the national supervisory authority found that the operator had not implemented appropriate technical and organizational measures to ensure that any natural person acting under the authority of the operator or the person authorized by the operator and having access to personal data processes it only at the request of the operator, except where this obligation is imposed by Union law or national law, and to ensure an appropriate level of security corresponding to the risk of processing, including the ability to ensure the confidentiality of the data.

This situation led to the unauthorized disclosure and/or unauthorized access to the personal data of 6 natural persons during the period from November 16, 2020, to May 18, 2021 (the transmission of service contracts to incorrect email addresses, unauthorized access by the operator's employees to the personal data of Vodafone customers without any requests from them).

Regarding the security breaches notified under Regulation (EU) no. 611/2013, the national supervisory authority found that the operator had not implemented appropriate technical and organizational measures to ensure the security of personal data processing, which would guarantee that personal data can only be accessed by authorized persons for purposes authorized by law and to protect personal data stored or transmitted against unlawful processing, access, or disclosure.

Thus, the operator processed the personal data of 64 natural persons through unauthorized access to their data by the operator's employees during the period from November 4, 2020, to June 22, 2021.

****Legal and Communication Directorate****

****N.S.A.P.D.C.P****